

Court No. - 32

Case :- WRIT - C No. - 45328 of 2015

Petitioner :- Surya Narayan

Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- K.M. Tripathi

Counsel for Respondent :- C.S.C.

Hon'ble Rakesh Tiwari,J.

Hon'ble Vivek Kumar Birla,J.

Heard counsel for the petitioner and Sri Narendra Kumar Tiwari appearing for respondent no. 2 and 3. Perused the record.

The petitioner has taken electricity connection for domestic purposes having load of 1 Kilowatt. According to the petitioner, without verification of load by the respondents, electricity consumption load of the petitioner has been enhanced from 1 Kilowatt to 2 Kilowatt, against which the petitioner has moved a representation dated 6.7.2015 which is still pending.

Counsel for the petitioner submits that a citation dated 25.5.2015 has been issued against the petitioner for recovery of Rs. 25,027/- plus other charges and the petitioner has thereafter deposited Rs. 27,530/- on 2.6.2015. Grievance of the petitioner is that without adjusting the aforesaid amount deposited by him, a bill dated 3.7.2015 for an amount of Rs. 53,835/- has been issued for the period 31.3.2015 to 31.5.2015.

Submission of the counsel for respondent is that under clause 7.10 of U.P. Electricity Supply Code, 2005, Consumer Grievance Redressal Forum has been established and the petitioner has a statutory remedy for redressal of his grievance. It is further argued that accuracy of the electricity bill can be redressed under clause 6.5 of the aforesaid supply Code.

After hearing learned counsel for the parties, we are of the opinion that there is no question of inaccuracy of the bill but it is a matter of adjustment of the amount which has been deposited by the petitioner. The petitioner is ready to deposit the amount after adjustment of the aforesaid amount deposited by him. Admittedly, the respondents have not passed any order on the representation made by the petitioner, therefore, it does not lie in their mouth to say that petitioner can raise his grievance before the Consumer Grievance Redressal Forum. Relevant extract of Clause 7.10 of the U.P. Electricity Supply Code, 2005, reads thus:

"(ii) Any consumer aggrieved by any action of the licensee, in respect of the matters mentioned in clauses 7.7.1 to 7.7.5 or those covered under the said Regulations, may file a complaint with the licensee.

(iii) If the licensee fails to settle the complaint of the consumer within the time limits specified in this Code or otherwise provided in the said Regulations, or the consumer is not satisfied by the decision of the licensee, the consumer may file a complaint in the Consumer Grievance Redressal Forum as per the specified procedure under the said Regulations."

A perusal of the aforesaid provision shows that respondents are to take decision first on the complaint made by the consumer and only then the consumer is required to move the Consumer Grievance Redressal Forum.

In the circumstances aforesaid, we direct the respondent no. 3-Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd. Pipri, Sonbhadra to decide the petitioner's representation dated 6.7.2015 appended as annexure no. 5 to the writ petition, within a period of 15 days from today and thereafter the petitioner, if aggrieved, may move Consumer Grievance Redressal Forum under clause 7.10 of the aforesaid supply Code.

With the above directions, the petition stands finally disposed of.

Order Date :- 13.8.2015

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